

An Act

ENROLLED SENATE
BILL NO. 1264

By: Gillespie of the Senate

and

Miller of the House

An Act relating to crimes and punishments; amending Section 5, Chapter 366, O.S.L. 2024, as amended by Section 1, Chapter 187, O.S.L. 2025 (21 O.S. Supp. 2025, Section 20E), which relates to Class A3 criminal offenses; updating effective date; conforming statutory references; amending Section 8, Chapter 366, O.S.L. 2024 (21 O.S. Supp. 2025, Section 20H), which relates to Class B3 criminal offenses; updating effective date; conforming statutory references; deleting certain crime from list of Class B3 criminal offenses; updating reference to certain controlled dangerous substance; amending 21 O.S. 2021, Section 644, as last amended by Section 1, Chapter 322, O.S.L. 2025 (21 O.S. Supp. 2025, Section 644), which relates to assault and battery; increasing certain penalties; providing classifications for certain criminal offenses; deleting certain criminal offense and related penalties; clarifying scope of certain prohibited act; modifying certain defined term; updating statutory language and references; repealing 21 O.S. 2021, Section 644, as last amended by Section 1, Chapter 147, O.S.L. 2025 (21 O.S. Supp. 2025, Section 644), which relates to assault and battery; repealing 21 O.S. 2021, Section 644, as last amended by Section 2, Chapter 162, O.S.L. 2025 (21 O.S. Supp. 2025, Section 644), which relates to assault and battery; repealing 21 O.S. 2021, Section 644, as last amended by Section 3, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 644), which relates to assault and battery; and providing an effective date.

SUBJECT: Assault and battery

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 5, Chapter 366, O.S.L. 2024, as amended by Section 1, Chapter 187, O.S.L. 2025 (21 O.S. Supp. 2025, Section 20E), is amended to read as follows:

Section 20E. A. ~~Upon the effective date of this act~~ On or after January 1, 2026, Class A3 shall include the following criminal offenses:

1. Domestic assault and battery with a deadly weapon, as provided for in ~~paragraph 2 of subsection D of Section 644 of Title 21 of the Oklahoma Statutes~~ this title;

2. Second or subsequent conviction of domestic abuse against a pregnant woman with knowledge of the pregnancy, as provided for in ~~paragraph 2 of subsection E of Section 644 of Title 21 of the Oklahoma Statutes~~ this title;

3. Aggravated assault and battery upon a police officer, sheriff, deputy sheriff or highway patrolman, corrections personnel, or any state peace officer, as provided for in subsection A of Section 650 of ~~Title 21 of the Oklahoma Statutes~~ this title;

4. Shooting with the intent to kill, as provided for in subsection A of Section 652 of ~~Title 21 of the Oklahoma Statutes~~ this title;

5. Using a vehicle to facilitate the intentional discharge of a firearm, crossbow, or other weapon, as provided for in subsection B of Section 652 of ~~Title 21 of the Oklahoma Statutes~~ this title;

6. Assault and battery with a deadly weapon, as provided for in subsection C of Section 652 of ~~Title 21 of the Oklahoma Statutes~~ this title;

7. Maiming, as provided for in Section 751 of ~~Title 21 of the Oklahoma Statutes~~ this title;

8. Sexual abuse by a caretaker, as provided for in paragraph 2 of subsection B of Section 843.1 of ~~Title 21 of the Oklahoma Statutes~~ this title;

9. Child abuse, as provided for in subsection A of Section 843.5 of ~~Title 21 of the Oklahoma Statutes~~ this title;

10. Enabling child abuse, as provided for in subsection B of Section 843.5 of ~~Title 21 of the Oklahoma Statutes~~ this title;

11. Child sexual abuse, as provided for in subsection E of Section 843.5 of ~~Title 21 of the Oklahoma Statutes~~ this title;

12. Enabling child sexual abuse, as provided for in subsection G of Section 843.5 of ~~Title 21 of the Oklahoma Statutes~~ this title;

13. Child sexual exploitation, as provided for in subsection H of Section 843.5 of ~~Title 21 of the Oklahoma Statutes~~ this title;

14. Enabling child sexual exploitation, as provided for in subsection J of Section 843.5 of ~~Title 21 of the Oklahoma Statutes~~ this title;

15. Lewd or indecent proposals or acts to a child, as provided for in subsection A of Section 1123 of ~~Title 21 of the Oklahoma Statutes~~ this title;

16. Terrorism, as provided for in subsection B of Section 1268.2 of ~~Title 21 of the Oklahoma Statutes~~ this title;

17. Conspiracy to commit terrorism, as provided for in subsection A of Section 1268.3 of ~~Title 21 of the Oklahoma Statutes~~ this title;

18. Any person above the age of eighteen (18) who, on campuses or public school grounds, advocates revolution, sabotage, force and violation, sedition, treason, or the overthrow of the United States government, as provided for in subsection B of Section 1327 of ~~Title 21 of the Oklahoma Statutes~~ this title;

19. Arson in the first degree, as provided for in subsection A of Section 1401 of ~~Title 21 of the Oklahoma Statutes~~ this title;

20. Arson while manufacturing, attempting to manufacture, or endeavoring to manufacture a controlled dangerous substance, as provided for in subsection B of Section 1401 of ~~Title 21 of the Oklahoma Statutes~~ this title; and

21. Causing personal injury while committing an act of arson, as provided for in Section 1405 of ~~Title 21 of the Oklahoma Statutes~~ this title.

B. Any person convicted of a Class A3 criminal offense set forth in this section shall be punished in accordance with the corresponding penalties provided for in the Oklahoma Statutes.

SECTION 2. AMENDATORY Section 8, Chapter 366, O.S.L. 2024 (21 O.S. Supp. 2025, Section 20H), is amended to read as follows:

Section 20H. A. ~~Upon the effective date of this act~~ On or after January 1, 2026, Class B3 shall include the following criminal offenses:

1. Embezzlement of state property by a public officer of the state or any county, city, town, or member or officer of the Legislature, deputy, or clerk, as provided for in Section 341 of ~~Title 21 of the Oklahoma Statutes~~ this title;

2. Burning, destroying, or injuring any public building, as provided for in Section 349 of ~~Title 21 of the Oklahoma Statutes~~ this title;

3. Resisting or aiding in resisting the execution of process, as provided for in Section 539 of ~~Title 21 of the Oklahoma Statutes~~ this title;

4. Domestic abuse with a prior pattern of physical abuse, as provided for in Section 644.1 of ~~Title 21 of the Oklahoma Statutes~~ this title;

5. ~~Assault, battery, or assault and battery upon an intimate partner or a family or household member with any sharp or dangerous~~

~~weapon, as provided for in paragraph 1 of subsection D of Section 644 of Title 21 of the Oklahoma Statutes;~~

~~6.~~ 6. Assault and battery against a current or former intimate partner or a family or household member that results in great bodily injury to the victim, as provided for in subsection F of Section 644 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~7.~~ 6. Second or subsequent conviction for assault and battery by strangulation or attempted strangulation against an intimate partner or a family or household member, as provided for in subsection J of Section 644 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~8.~~ 7. Second or subsequent conviction for committing or attempting to commit a felony while wearing body armor, as provided for in Section 1289.26 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~9.~~ 8. Riotous assembly for the purpose of resisting the execution of any statute or obstructing any public officer, as provided for in paragraph 2 of Section 1312 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~10.~~ 9. Carrying at the time of a riot any firearm or other deadly weapon or being disguised while participating in a riot, as provided for in paragraph 3 of Section 1312 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~11.~~ 10. Directing, advising, encouraging, or soliciting other persons to use force or violence while participating in a riot, as provided for in paragraph 4 of Section 1312 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~12.~~ 11. Arson with the intent to injure or defraud the insurer, as provided for in subsection B of Section 1403 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~13.~~ 12. Forgery in the first degree, as provided for in Section 1561 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~14.~~ 13. Forgery of stock certificates or securities, as provided for in Section 1562 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~15.~~ 14. Fraudulently uttering one's signature on any instrument as that of another with the same name, as provided for in Section 1622 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~16.~~ 15. Fraudulently uttering one's endorsement on any negotiable instrument as that of another with the same name, as provided for in Section 1623 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~17.~~ 16. Total or partial erasure or obliteration of any instrument or writing with intent to defraud, as provided for in Section 1624 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~18.~~ 17. Signing fictitious name as an officer or agent of a corporation, as provided for in Section 1626 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~19.~~ 18. Procuring, soliciting, selling, or receiving more than ten ~~(10)~~ telephone records by fraudulent, deceptive, or false means, as provided for in paragraph 3 of subsection B of Section 1742.2 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~20.~~ 19. Violating the Viatical Settlements Act of 2008, as provided for in paragraph 1 of subsection F of Section 4055.14 of Title 36 of the Oklahoma Statutes;

~~21.~~ 20. Third or subsequent conviction of driving under the influence of alcohol or other intoxicating substance, as provided for in paragraph 4 of subsection C of Section 11-902 of Title 47 of the Oklahoma Statutes;

~~22.~~ 21. Driving under the influence with a blood or breath alcohol concentration of fifteen-hundredths (0.15) or more, as provided for in subsection D of Section 11-902 of Title 47 of the Oklahoma Statutes;

~~23.~~ 22. Injuring, destroying, or attempting to injure or destroy any hazardous liquid transportation system, as provided for in Section 47.6 of Title 52 of the Oklahoma Statutes;

~~24.~~ 23. Bringing into or having in his or her possession in any jail, state penal institution, or other place where prisoners are located, any gun, knife, bomb, other dangerous instrument, controlled dangerous substance, alcoholic beverage, money, or financial documents, as provided for in subsection A of Section 21 of Title 57 of the Oklahoma Statutes;

~~25.~~ 24. Purchasing or attempting to purchase, receive, or otherwise acquire any product, mixture, or preparation containing any detectable quantity of base pseudoephedrine or ephedrine after a conviction of manufacturing or attempting to manufacture methamphetamine, as provided for in paragraph 5 of subsection G of Section 2-401 of Title 63 of the Oklahoma Statutes;

~~26.~~ 25. Distributing, other than by dispensing, a Schedule I or Schedule II controlled dangerous substance, in the course of legitimate business, as provided for in paragraph 1 of subsection A of Section 2-406 of Title 63 of the Oklahoma Statutes;

~~27.~~ 26. Using a fictitious, revoked, suspended, or fraudulent registration number in the course of manufacturing or distributing a controlled dangerous substance, as provided for in paragraph 2 of subsection A of Section 2-406 of Title 63 of the Oklahoma Statutes;

~~28.~~ 27. Furnishing false or fraudulent material information in, or omitting any material information from, any application, report, or document required by the Uniform Controlled Dangerous Substances Act, as provided for in paragraph 4 of subsection A of Section 2-406 of Title 63 of the Oklahoma Statutes;

~~29.~~ 28. Making, distributing, or possessing any punch, die, plate, stone, or other thing designed to print, imprint, or reproduce the trademark, trade name, or other identifying mark, upon any drug, container, or labeling, as provided for in paragraph 5 of subsection A of Section 2-406 of Title 63 of the Oklahoma Statutes;

~~30.~~ 29. Trafficking twenty-five (25) pounds or more of marijuana, as provided for in subparagraph a of paragraph 1 of subsection C of Section 2-415 of Title 63 of the Oklahoma Statutes;

~~31.~~ 30. Trafficking twenty-eight (28) grams or more of cocaine, coca leaves, or cocaine base, as provided for in subparagraph a of paragraph 2 of subsection C of Section 2-415 of Title 63 of the Oklahoma Statutes;

~~32.~~ 31. Trafficking three hundred (300) grams or more of cocaine, coca leaves, or cocaine base, as provided for in subparagraph b of paragraph 2 of subsection C of Section 2-415 of Title 63 of the Oklahoma Statutes;

~~33.~~ 32. Trafficking ten (10) grams or more of heroin, as provided for in subparagraph a of paragraph 3 of subsection C of Section 2-415 of Title 63 of the Oklahoma Statutes;

~~34.~~ 33. Trafficking twenty (20) grams or more of amphetamine or methamphetamine, as provided for in subparagraph a of paragraph 4 of subsection C of Section 2-415 of Title 63 of the Oklahoma Statutes;

~~35.~~ 34. Trafficking two hundred (200) grams or more of amphetamine or methamphetamine, as provided for in subparagraph b of paragraph 4 of subsection C of Section 2-415 of Title 63 of the Oklahoma Statutes;

~~36.~~ 35. Trafficking one (1) gram or more of lysergic acid diethylamide (LSD), as provided for in subparagraph a of paragraph 5 of subsection C of Section 2-415 of Title 63 of the Oklahoma Statutes;

~~37.~~ 36. Trafficking twenty (20) grams or more of phencyclidine (PCP), as provided for in subparagraph a of paragraph 6 of subsection C of Section 2-415 of Title 63 of the Oklahoma Statutes;

~~38.~~ 37. Trafficking thirty (30) tablets or ten (10) grams of 3,4-Methylenedioxy methamphetamine, as provided for in subparagraph a of paragraph 7 of subsection C of Section 2-415 of Title 63 of the Oklahoma Statutes;

~~39.~~ 38. Aggravated trafficking one hundred (100) tablets or thirty (30) grams of 3,4-Methylenedioxy methamphetamine, as provided for in subparagraph b of paragraph 7 of subsection C of Section 2-415 of Title 63 of the Oklahoma Statutes;

~~40.~~ 39. Trafficking one thousand (1,000) grams or more of morphine, as provided for in paragraph 8 of subsection C of Section 2-415 of Title 63 of the Oklahoma Statutes;

~~41.~~ 40. Trafficking four hundred (400) grams or more of oxycodone, as provided for in paragraph 9 of subsection C of Section 2-415 of Title 63 of the Oklahoma Statutes;

~~42.~~ 41. Trafficking three thousand seven hundred fifty (3,750) grams or more of hydrocodone, as provided for in paragraph 10 of subsection C of Section 2-415 of Title 63 of the Oklahoma Statutes;

~~43.~~ 42. Trafficking five hundred (500) grams or more of benzodiazepine, as provided for in paragraph 11 of subsection C of Section 2-415 of Title 63 of the Oklahoma Statutes;

~~44.~~ 43. Trafficking one (1) gram or more of fentanyl or ~~carfentanyl~~ carfentanil, as provided for in subparagraph a of paragraph 12 of subsection C of Section 2-415 of Title 63 of the Oklahoma Statutes;

~~45.~~ 44. Employing, hiring, or using an individual under fifteen (15) years of age to unlawfully transport, carry, sell, give away, prepare for sale, or peddle any controlled dangerous substance, as provided for in subsection D of Section 2-419.1 of Title 63 of the Oklahoma Statutes;

~~46.~~ 45. Second or subsequent conviction for violating the Vessel and Motor Chop Shop, Stolen and Altered Property Act, as provided for in subsection J of Section 4253 of Title 63 of the Oklahoma Statutes; and

~~47.~~ 46. Third or subsequent conviction for violating the Vessel and Motor Chop Shop, Stolen and Altered Property Act, as provided for in subsection J of Section 4253 of Title 63 of the Oklahoma Statutes.

B. Any person convicted of a Class B3 criminal offense set forth in this section shall be punished in accordance with the corresponding penalties provided for in the Oklahoma Statutes.

SECTION 3. AMENDATORY 21 O.S. 2021, Section 644, as last amended by Section 1, Chapter 322, O.S.L. 2025 (21 O.S. Supp. 2025, Section 644), is amended to read as follows:

Section 644. A. Assault shall, upon conviction, be punishable by imprisonment in a county jail not exceeding ~~thirty (30)~~ ninety (90) days, or by a fine ~~of~~ not more than Five Hundred Dollars (\$500.00), or by both such ~~fine imprisonment and imprisonment~~ fine.

B. Assault and battery shall, upon conviction, be punishable by imprisonment in a county jail not exceeding ~~ninety (90) days~~ six (6) months, or by a fine ~~of~~ not more than One Thousand Dollars (\$1,000.00), or by both such ~~fine imprisonment and imprisonment~~ fine.

C. Any person who commits any assault and battery against a current or former intimate partner or a family or household member as defined by Section 60.1 of Title 22 of the Oklahoma Statutes shall be guilty of domestic abuse. Upon conviction, the defendant shall be punished by imprisonment in the county jail for not more than one (1) year, or by a fine not exceeding Five Thousand Dollars (\$5,000.00), or by both such ~~fine imprisonment and imprisonment~~ fine. Upon conviction for a second or subsequent offense, the person shall be ~~punished~~ guilty of a Class B5 felony offense punishable by imprisonment in the custody of the Department of Corrections for not more than four (4) years, or by a fine not exceeding Five Thousand Dollars (\$5,000.00), or by both such ~~fine imprisonment and imprisonment~~ fine. The provisions of Section 51.1 of this title shall apply to any second or subsequent offense.

D. ~~1. Any person who, with intent to do bodily harm and without justifiable or excusable cause, commits any assault, battery, or assault and battery upon an intimate partner or a family or household member as defined by Section 60.1 of Title 22 of the Oklahoma Statutes with any sharp or dangerous weapon, upon conviction, is guilty of domestic assault or domestic assault and battery with a dangerous weapon which shall be a felony and punishable by imprisonment in the custody of the Department of~~

~~Corrections not exceeding ten (10) years, or by imprisonment in a county jail not exceeding one (1) year. The provisions of Section 51.1 of this title shall apply to any second or subsequent conviction for a violation of this paragraph.~~

2. Any person who, with intent to do bodily harm and without such justifiable or excusable cause, shoots ~~commits any assault and battery upon an intimate partner or a family or household member as defined by Section 60.1 of Title 22 of the Oklahoma Statutes by means of any deadly weapon or by such other means or force that is likely to produce death shall, upon conviction, be guilty of domestic assault and battery with a deadly weapon which shall be a Class A3 felony offense punishable by imprisonment in the custody of the Department of Corrections not exceeding life. The provisions of Section 51.1 of this title shall apply to any second or subsequent conviction for a violation of this~~ paragraph subsection.

E. 1. Any person convicted of domestic abuse committed against a pregnant woman with knowledge of the pregnancy shall be guilty of a Class B5 felony offense, punishable by imprisonment in the custody of the Department of Corrections for not more than five (5) years.

2. Any person convicted of a second or subsequent offense of domestic abuse against a pregnant woman with knowledge of the pregnancy shall be guilty of a Class A3 felony, ~~offense~~ punishable by imprisonment in the custody of the Department of Corrections for not less than ten (10) years.

3. Any person convicted of domestic abuse committed against a pregnant woman with knowledge of the pregnancy and a miscarriage occurs or injury to the unborn child occurs shall, upon conviction, be guilty of a Class A1 felony, ~~offense~~ punishable by imprisonment in the custody of the Department of Corrections for not less than twenty (20) years.

F. Any person convicted of domestic abuse as defined in subsection C of this section that results in great bodily injury to the victim shall, upon conviction, be guilty of a Class B3 felony ~~and punished~~ offense punishable by imprisonment in the custody of the Department of Corrections for not more than ten (10) years, or by imprisonment in the county jail for not more than one (1) year.

The provisions of Section 51.1 of this title shall apply to any second or subsequent conviction of a violation of this subsection.

G. Any person convicted of domestic abuse as defined in subsection C of this section that was committed in the presence of a child shall be punished by imprisonment in the county jail for not less than six (6) months nor more than one (1) year, or by a fine not exceeding Five Thousand Dollars (\$5,000.00), or by both such ~~fine imprisonment and imprisonment fine~~. Any person convicted of a second or subsequent domestic abuse as defined in subsection C of this section that was committed in the presence of a child shall be ~~punished guilty of a Class B5 felony offense punishable by~~ imprisonment in the custody of the Department of Corrections for not less than one (1) year nor more than five (5) years, or by a fine not exceeding Seven Thousand Dollars (\$7,000.00), or by both such ~~fine imprisonment and imprisonment fine~~. The provisions of Section 51.1 of this title shall apply to any second or subsequent offense. For every conviction of a domestic abuse crime in violation of any provision of this section committed against an intimate partner or a family or household member as defined by Section 60.1 of Title 22 of the Oklahoma Statutes, the court shall:

1. Specifically order as a condition of a suspended or deferred sentence that a defendant undergo treatment to bring about the cessation of domestic abuse as specified in paragraph 2 of this subsection;

2. a. The court shall require the defendant to complete an assessment and follow the recommendations of a batterers' intervention program to attend a fifty-two-week batterers' intervention program or a pilot batterers' intervention program, if available, certified by the Attorney General.
- b. If the defendant participates in a batterers' intervention program, the program shall require the defendant to attend for a minimum of fifty-two (52) weeks, complete the program, and be evaluated before and after attendance of the program by program staff. Three unexcused absences in succession or seven unexcused absences in a period of fifty-two (52) weeks from any court-ordered batterers' intervention program

shall be prima facie evidence of the violation of the conditions of probation for the district attorney to seek acceleration or revocation of any probation entered by the court.

- c. To investigate the effectiveness of additional batterers' intervention models, the Attorney General, beginning February 1, 2026, may certify two pilot batterers' intervention programs for a period of thirty-six (36) months located in Oklahoma and Tulsa Counties. Proposals for certification as a pilot batterers' intervention program may be approved only if made by an organization that was dually certified as a batterers' intervention program and a domestic violence and sexual assault program on or before January 1, 2025, or by an organization certified as a batterers' intervention program on or before January 1, 2025, pursuant to a written agreement with an organization certified as a domestic violence and sexual assault program on or before January 1, 2025. Treatment provided through a pilot batterers' intervention program shall be evidence-based and shall be a minimum of twenty-six (26) weeks' duration. Participation in a pilot batterers' intervention program shall be limited to fifty participants at any given time. Pilot batterers' intervention programs shall be self-funded, including any fees which may be charged to the participants; provided, however, state or federal funding may continue for domestic violence and sexual abuse programs.
- d. The Office of the Attorney General shall promulgate rules for pilot batterers' intervention programs in consultation with domestic violence and batterers' intervention programs or advocacy organizations.

The Attorney General shall establish within his or her administrative rules a screening and referral process to review referrals to the pilot batterers' intervention programs; provided, however, individuals convicted of domestic abuse with a dangerous weapon or domestic abuse by strangulation shall not be eligible

to participate in the pilot program. The Attorney General shall require reporting of data necessary for evaluation of the pilot programs. The pilot programs shall provide the Attorney General with annual updates and at the end of a pilot program term, a formal evaluation shall be done by a third party agreed upon by the Attorney General and the pilot program operator.

- e. All participants in the pilot program shall be subject to a validated risk assessment conducted by a qualified professional. The results of the assessment shall be used to determine program placement based on the level of risk and individual circumstances. Participation in any shared or joint setting by both the survivor and the individual who has caused harm shall be prohibited under a pilot program. The Attorney General shall adopt rules to implement this subparagraph, including standards for risk assessment tools and differentiated response models.
- f. The Attorney General may provide by rule for extension of no more than twenty-four (24) months beyond thirty-six (36) months of a pilot batterers' intervention program if recommended by the third-party evaluator.
- g. Pilot batterers' intervention programs shall:
 - (1) prioritize survivors' well-being in every part of the pilot program including screening, participation, reporting, and evaluation,
 - (2) ensure that batterers' intervention programs use appropriate intervention strategies to assist the batterer in fostering the appropriate skills to:
 - (a) stop the violence committed by the batterer,
 - (b) accept personal accountability for battering and personal responsibility for the decision to stop or not to stop battering, and

- (c) change the existing attitudes and beliefs of the batterer that support the coercive behavior of the batterer,
 - (3) address all forms of battering,
 - (4) be culturally informed and provide culturally appropriate services to all participants,
 - (5) provide services that are affordable and accessible for participants, including participants with disabilities and limited English proficiency,
 - (6) provide a uniform standard for evaluating the performance of a batterers' intervention program,
 - (7) be informed by evidence-based practice, research, and proven field experience, including risk assessment, that enhances victim safety,
 - (8) foster local and statewide communication and interaction between and among batterers' intervention programs and victim advocacy programs, and
 - (9) ensure that batterers' intervention programs operate as an integrated part of the wider community response to battering.
- h. A program for anger management, couples counseling, or family and marital counseling shall not solely qualify for the treatment requirement for domestic abuse pursuant to this subsection. The counseling may be ordered in addition to the treatment of domestic abuse or per evaluation as set forth below. If, after sufficient evaluation and attendance at required treatment sessions, the domestic violence treatment program determines that the defendant does not evaluate as a perpetrator of domestic violence or does evaluate as a perpetrator of domestic violence and should complete other programs of treatment

simultaneously or prior to or subsequent to domestic violence treatment, including, but not limited to, programs related to ~~the~~ mental health, apparent substance or alcohol abuse or inability or refusal to manage anger, the defendant shall be ordered to complete the counseling as per the recommendations of the domestic violence treatment program;

3. a. The court shall set a review hearing no more than one hundred twenty (120) days after the defendant is ordered to undergo treatment for domestic abuse to assure the attendance and compliance of the defendant with the provisions of this subsection. The court may delay sentencing of the defendant until the defendant has presented proof to the court of enrollment in a domestic abuse treatment program certified by the Attorney General and attendance at weekly sessions of such program. Such proof shall be presented to the court by the defendant no later than one hundred twenty (120) days after the defendant is ordered to such treatment. At such time, the court may complete sentencing, beginning the period of the sentence from the date that proof of enrollment is presented to the court, and schedule reviews as required by ~~subparagraphs a~~ this subparagraph and subparagraph b of this paragraph and paragraphs 4 and 5 of this subsection. Three unexcused absences in succession or seven unexcused absences in a period of fifty-two (52) weeks from any court-ordered treatment program shall be prima facie evidence of the violation of the conditions of probation for the district attorney to seek acceleration or revocation of any probation entered by the court.
- b. The court shall set a second review hearing after the completion of the treatment to assure the attendance and compliance of the defendant with the provisions of this subsection and the treatment requirements. The court shall retain continuing jurisdiction over the defendant during the course of ordered counseling through the final review hearing;

4. The court may set subsequent or other review hearings as the court determines necessary to assure the defendant attends and fully complies with the provisions of this subsection and the treatment requirements;

5. At any review hearing, if the defendant is not satisfactorily attending a treatment program or is not in compliance with treatment requirements, the court may order the defendant to further or continue treatment or other necessary services. The court may revoke all or any part of a suspended sentence, deferred sentence, or probation pursuant to Section 991b of Title 22 of the Oklahoma Statutes and subject the defendant to any or all remaining portions of the original sentence;

6. At the first review hearing, the court shall require the defendant to appear in court. Thereafter, for any subsequent review hearings, the court may accept a report on the progress of the defendant from the treatment program. There shall be no requirement for the victim to attend review hearings; and

7. If funding is available, a referee may be appointed and assigned by the presiding judge of the district court to hear designated cases set for review under this subsection. Reasonable compensation for the referees shall be fixed by the presiding judge. The referee shall meet the requirements and perform all duties in the same manner and procedure as set forth in Sections 1-8-103 and 2-2-702 of Title 10A of the Oklahoma Statutes pertaining to referees appointed in juvenile proceedings.

The defendant may be required to pay all or part of the cost of the treatment, in the discretion of the court.

H. As used in subsection G of this section, "in the presence of a child" means in the physical presence of a child; or having knowledge that a child is present and may see or hear an act of domestic violence. For the purposes of ~~subsections C and~~ subsection G of this section, "child" may be any child whether or not related to the victim or the defendant.

I. For the purposes of subsections C and G of this section, any conviction for assault and battery against an intimate partner or a family or household member as defined by Section 60.1 of Title 22 of

the Oklahoma Statutes shall constitute a sufficient basis for a felony charge:

1. If that conviction is rendered in any state, county, or parish court of record of this or any other state; or

2. If that conviction is rendered in any municipal court of record of this or any other state for which any jail time was served; provided, no conviction in a municipal court of record entered prior to November 1, 1997, shall constitute a prior conviction for purposes of a felony charge.

J. Any person who commits any assault and battery by strangulation or attempted strangulation against an intimate partner or a family or household member as defined by Section 60.1 of Title 22 of the Oklahoma Statutes shall, upon conviction, be guilty of a Class B5 felony offense of domestic abuse by strangulation ~~and shall be punished~~ punishable by imprisonment in the custody of the Department of Corrections for a period ~~of~~ not less than one (1) year nor more than three (3) years, or by a fine ~~of~~ not more than Three Thousand Dollars (\$3,000.00), or by both such ~~fine imprisonment and imprisonment~~ fine imprisonment and imprisonment fine. Upon a second or subsequent conviction for a violation of this section, the defendant shall be ~~punished~~ guilty of a Class B3 felony punishable by imprisonment in the custody of the Department of Corrections for a period ~~of~~ not less than three (3) years nor more than ten (10) years, or by a fine ~~of~~ not more than Twenty Thousand Dollars (\$20,000.00), or by both such ~~fine imprisonment and imprisonment~~ fine imprisonment and imprisonment fine. The provisions of Section 51.1 of this title shall apply to any second or subsequent conviction of a violation of this subsection. As used in this subsection, "strangulation" means any form of asphyxia; including, but not limited to, asphyxia characterized by closure of the blood vessels or air passages of the neck as a result of external pressure on the neck or the closure of the nostrils or mouth as a result of external pressure on the head.

K. Any district court of this state and any judge thereof shall be immune from any liability or prosecution for issuing an order that requires a defendant to:

1. Attend a treatment program for domestic abusers certified by the Attorney General;

2. Attend counseling or treatment services ordered as part of any suspended or deferred sentence or probation; and

3. Attend, complete, and be evaluated before and after attendance by a treatment program for domestic abusers, certified by the Attorney General.

L. There shall be no charge of fees or costs to any victim of domestic violence, stalking, or sexual assault in connection with the prosecution of a domestic violence, stalking, or sexual assault offense in this state.

M. In the course of prosecuting any charge of domestic abuse, stalking, harassment, rape, or violation of a protective order, the prosecutor shall provide the court, prior to sentencing or any plea agreement, a local history and any other available history of past convictions of the defendant within the last ten (10) years relating to domestic abuse, stalking, harassment, rape, violation of a protective order, or any other violent misdemeanor or felony convictions.

N. Any plea of guilty or finding of guilt for a violation of subsection C, F, G, I, or J of this section shall constitute a conviction of the offense for the purpose of this ~~act~~ section or any other criminal statute under which the existence of a prior conviction is relevant for a period of ten (10) years following the completion of any court imposed probationary term; provided, the person has not, in the meantime, been convicted of a misdemeanor involving moral turpitude or a felony.

O. For purposes of subsection F of this section, "great bodily injury" means bone fracture, ~~protracted and obvious~~ disfigurement, concussion, protracted loss or impairment of the function of a body part, organ, or mental faculty, burns of the second degree or greater, injury requiring surgical intervention, injury requiring continuous hospitalization of forty-eight (48) hours or more, or any injury creating a substantial risk of death.

P. Any pleas of guilty or nolo contendere or finding of guilt to a violation of any provision of this section shall constitute a conviction of the offense for the purpose of any subsection of this

section under which the existence of a prior conviction is relevant for a period of ten (10) years following the completion of any sentence or court imposed probationary term.

SECTION 4. REPEALER 21 O.S. 2021, Section 644, as last amended by Section 1, Chapter 147, O.S.L. 2025 (21 O.S. Supp. 2025, Section 644), is hereby repealed.

SECTION 5. REPEALER 21 O.S. 2021, Section 644, as last amended by Section 2, Chapter 162, O.S.L. 2025 (21 O.S. Supp. 2025, Section 644), is hereby repealed.

SECTION 6. REPEALER 21 O.S. 2021, Section 644, as last amended by Section 3, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 644), is hereby repealed.

SECTION 7. This act shall become effective November 1, 2026.

Passed the Senate the 14th day of May, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 5th day of May, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____